

Orders on IA.1

I.A. No.1 filed by the JDRs 1 to 3 under Section 151 of CPC praying to dismiss the Execution Petition claiming that this decree holder has no executable decree in his favour, so that he can file Execution Petition.

The said application is supported with the affidavit of JDr No.1 Sunitha, wherein, she claiming that in the said

L.A.C. No. 30/2022, the claim of this decree holder has been negated by the Court and the Court held that the JDRs 1 to 3 are only entitled for compensation and para No.73 of the judgment the Court specifically held that the decree holder is not entitled for any compensation and the said finding has been challenged by the decree holder in MFA No.963/2023 and even on that count also the decree holder is not entitled for any compensation. Among other grounds, prayed to dismiss the Execution Petition.

The decree holder filed detailed objections.

On that basis the point for consideration is as under:

“Whether the JDRs 1 to 3 made out sufficient grounds to reject the Execution Petition as the decree holder has no enforceable decree in his favour in L.A.C. No.30/2022?”

Heard the arguments. Perused the materials on records. The respective parties filed their written arguments. My finding on the above point is in the affirmative, for the following:

REASONS

Undisputedly this decree holder is the claimant No.2 in L.A.C. No.30/2022. The JDRs 1 to 3 namely Smt. Sunitha, D. Vinay and D. Vidya are the claimants 1, 3 and 4 in the said L.A.C. No.30/2022. Admittedly, this Execution Petition has been filed by the decree holder to enforce the decree or award passed in L.A.C. No.30/2022. Hence, there must be an enforceable decree in favour of decree holder in the judgment / award passed in L.A.C. No. 30/2022. Hence, it is just and necessary to note operative portion of L.A.C. No. 30/2022 dated 09.11.2022, at page No.71, that reads as that:

“O R D E R

The reference made by the respondent No.1 under Sections 30 and 31(2) of the Land Acquisition Act, 1894 is disposed.

In RFA 1213/2016, 1239/2016, 1397/2016, 769/2022 in respect of acquired property bearing Sy.No. 125/1, if it is held that the acquired property is joint family property then all the children (their legal heirs) of late H. Gangappa would be entitled to equal share in the compensation amount along with accrued interest. On the

other hand if it is held not be joint family property then claimant No. 3 & 4 would be entitle to compensation amount along with the accrued interest.

The disposal of RFA will take considerable time hence direction is given to SLAO and the Bank (all types of accounts) where the accounts of Claimant No. 1, 3 and 4 have been freezed at the instance of police shall be de-freezed and the amount shall be deposited before the Court at the earliest.

The Claimant Nos. 1, 3 and 4 shall deposit amount which have not been freezed together with interest at 9% within 2 months from the date of the order. Failing which they are liable to pay interest at 15% till entire amount is deposited.

If SLAO fails to deposit the defreezed amount and / or the claimants 1, 3 and 4 fail to deposit the amount which has not been freezed, the claimants can recover the amount from the respondents.

At the time of receiving the compensation, the claimants shall have to execute indemnity bond with one surety, undertaking to re-deposit the compensation amount either in this court or in any other court, if ordered to do so, which amount they are going to receive in this case.

Draw award accordingly”.

The aforesaid entire operative portion of the judgment nowhere says that this decree holder who is claimant No.2 in the Execution Petition is entitled for any compensation. It is also relevant to note the observation made by the learned predecessor in office in the judgment at para No. 73, last 4 lines of the para No. 73 found in page No. 67 reads as that:

“Even though acquired property is held to be self acquired property of claimant No. 2. Khatha stood in his name, since he is not in possession, he is not entitled for compensation amount as owner of the property.

Therefore, if the aforesaid observation by the learned predecessor in office shows that the decree holder has not proved his possession over the acquired property, so that, he is not entitled for any compensation amount. Of-course, the decree holder has filed the order passed in MFA No.8171/2022. Infact, the said MFA has been dismissed.

It is relevant to note that the said MFA is also not filed by the decree holder. Infact, there is no material on record to show that the Judgment and Award passed in L.A.C. No. 30/2022 has been challenged

by the decree holder. It is true that the decree holder has produced the order passed in MFA No.8171/2022, MFA No.963/2023 as well as Review petition No. 586/2023 but none of the order nowhere discloses that the Judgment and Award passed by this Court in L.A.C. No. 30/2022 has been set aside or modified. Even if the judgment is set aside, there must be some modification to show claimant No.2 in L.A.C. No. 30/2022 who is present decree holder is also entitled for compensation, then only, this decree holder is entitled to claim compensation on the basis of the award passed in L.A.C. No.30/2022. As stated above, the Court while passing the judgment in L.A.C. No.30/2022 at all the paragraphs of the order specifically made out that claimants 1, 3 and 4 i.e., JDRs 1 to 3 in the case are entitled for compensation. Further, as stated earlier, in the judgment at para No. 73 it is specifically held that the decree holder who is claimant No.2 is not entitled for compensation amount as owner of the property. When there is specific finding in the judgment certainly this decree holder is not entitled to claim any compensation. Therefore, unless and until the aforesaid Judgment and Award passed

by this Court in L.A.C. No.30/2022 has been set aside or modified, certainly, the decree holder is not entitled to claim compensation as the Judgment and Award passed in L.A.C. No. 30/2022 is binding on the claimant No.2 and he is a party to the case and also prosecuted the case through his advocate and also led evidence as PW.1 along with documents. My learned predecessor in office considering all the oral and documentary evidence has given specific findings that claimant No.2 in L.A.C. No. 30/2022 who is decree holder in the case is not entitled for any compensation. Therefore, the said Judgment and Award is binding on the decree holder. The decree holder also in the Execution Petition nowhere claimed that the judgment passed in L.A.C. No.30/2022 has been set aside or modified.

At this juncture, it is also relevant to note that as per the 2nd paragraph of the operative portion of the order there is a reference of RFA No. 1213/2016, 1239/2016, 1397/2016 and 769/2022 and by referring the said appeals it is held by my learned predecessor that in the said cases, if it is held that the property is joint family property then all the children of late.

Gangappa are entitled for equal share. But there is no material on record to show that the said case has been disposed off. The decree holder has also not produced any documents to show that the aforesaid appeals were disposed off. Hence, the decree holder can file the Execution Petition subject to the result of said appeals or if the award passed by this Court has been modified. Therefore, this Court is of the humble opinion that this Execution Petition is not maintainable and hence, liable to be dismissed. Accordingly, the above point is answered in the affirmative and proceed to pass the following:

ORDER

Execution Petition is hereby dismissed as no compensation is awarded in favour of decree holder in L.A.C. No. 30/2022 and the award is in favour of JDRs 1 to 3.

(PADMA PRASAD)

II Addl. City Civil and Sessions Judge,
& Spl. Judge, Bengaluru.

It is relevant to note that the learned advocate for the decree holder filed advancement application claiming that he wants to bring LRs of JDr No. 17, but in

view of dismissal of this Execution Petition,
question of impleading LR's does not arise.

(PADMA PRASAD)
II Addl. City Civil and Sessions Judge,
& Spl. Judge, Bengaluru.